

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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RICARDO MALIN,

**SUMMONS TO THE
COMPLAINT**

Plaintiff,

-against-

Index:

THE CITY OF NEW YORK; P.O. CHRISTOPHER FRANCIS,
Shield # 10068, Tax # 965108; and P.O. JOHN DOES # 1-10, the
individual defendants sued individually and in their official
capacities,

Basis of Venue: occurrence of
incident – Marcy Avenue and
Martin Luther King Jr. Place,
Brooklyn, New York (Marcy
Projects)

Defendants.

----- X

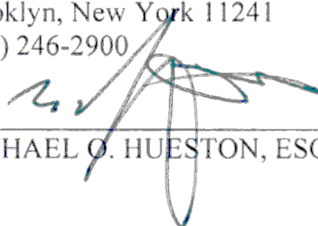
To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
November 10, 2020

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 1800
Brooklyn, New York 11241
(718) 246-2900

By:


MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007; P.O. CHRISTOPHER FRANCIS, Shield # 10068, Tax # 965108; and P.O. JOHN DOES # 1-10, P.S.A. 3, 25 Central Ave, Brooklyn, NY 11206 and/or the 79th Precinct, 263 Tompkins Ave, Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE KINGS

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Plaintiff, **Index:**

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Defendants.

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Jury Trial Demanded

Plaintiff RICARDO MALIN, by and through his counsel, Michael O. Hueston, Esq., upon information and belief, allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution; and the laws of the State of New York. Plaintiff's claims arise from an incident that arose on or about August 17, 2019. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: unlawful search and seizure; false arrest; assault; battery; unreasonable force; failure to intervene; conspiracy; denial of a fair trial; malicious prosecution; implementation and continuation of an unlawful municipal policy, practice, and custom; and respondeat superior liability. Plaintiff seeks compensatory and

punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incidents alleged in this complaint, plaintiff served upon defendant City of New York Notices of Claim setting forth the name and post office address of plaintiff, the nature of the claims, the time when, the place where and the manner in which the claims arose, and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. Defendant City of New York has not requested a physical examination of Plaintiff. Plaintiff has participated in a 50-H hearing. Plaintiff has satisfied all conditions precedent for the filing of this action. This action is being commenced within one year and ninety days of the date of the occurrences herein.

5. Venue is proper in the Supreme Court of the State New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York and individual defendants are subject to personal jurisdiction in Supreme Court of the State New York, Kings County; and jurisdiction is proper because the Supreme Court of the State New York, Kings County has jurisdiction over plaintiff's state law causes of actions, and plaintiff's federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

6. Plaintiff Ricardo Malin is a resident of the State of New York, Kings County, living at 111 Norstrand Avenue, Apt. # 5C, Brooklyn, New York 11206.

7. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

8. At all times relevant, defendant City of New York maintained a police department known as the New York Police Department ("NYPD"), which employed the individual defendants.

9. At all times alleged herein, defendants P.O. Christopher Francis, Shield # 10068, Tax # 965108; and P.O. John Does # 1-10 were employed as police officers with P.S.A. 3 and/or the 79th Precinct, located in Kings County, New York, or other as yet unknown NYPD assignments, who violated plaintiff's rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

Incident

11. On August 17, 2019, several police officers operating from the P.S.A. 3 and/or the 79th Precinct located in Kings County, New York, including upon information and belief, the individual defendants P.O. Christopher Francis, Shield # 10068, Tax # 965108; and P.O. John Does # 1-10 ("the police"), at times acting in concert and at times acting independently, committed the following illegal acts against the plaintiff.

12. On August 18, 2018 at approximately 10:50 p.m. to 11:00 p.m., at and in the vicinity of Marcy Avenue and Martin Luther King Jr. Place, Brooklyn, New York (Marcy Projects), the police without either consent, an arrest warrant, a search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime unlawfully arrested plaintiff.

13. The police acted in concert in committing the illegal acts against plaintiff.

14. Plaintiff was socializing at an annual barbecue called “family” or “community” day for the residents and friends of people who live in the Marcy Projects.

15. The police swarmed in and around the Marcy Projects without a warrant or cause and began abusing people.

16. Once the police came to and around the Marcy Projects plaintiff was not free to disregard the defendants’ questions, walk away or leave the scene.

17. The police were physically abusing and arresting a person plaintiff knew.

18. When plaintiff asked a police officer if he could take possession of the person’s property, another police officer violently shoved him and tackled plaintiff from behind without cause.

19. Other police officers also tackled plaintiff.

20. The police then punched and kicked plaintiff multiple times.

21. Plaintiff repeatedly pleaded with the police to stop hitting him and told them he was not resisting.

22. The police grabbed plaintiff, pulled his arms behind his back, placed excessively tight handcuffs on his wrists before picking him up and placing him into a police vehicle.

23. The police purposely overextended plaintiff’s arms and back.

24. The police transported plaintiff to the 79th Precinct and P.S.A. 3 and processed his arrest and issued him a desk appearance ticket.

25. Upon information and belief, in order to cover up their illegal actions, the police, pursuant to a conspiracy, initiated by police reports, false sworn complaint(s) and/or

conversations, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed various crimes, and the District Attorney prosecuted plaintiff for various charges, including disorderly conduct.

26. After having to appear in court, the case against plaintiff was dismissed on November 25, 2019.

27. The plaintiff was humiliated and embarrassed by the experience.

28. The police's use of excessive force caused plaintiff physical injuries, including contusions, abrasions, swelling, bruises, and pain.

29. Plaintiff also suffered migraines and headaches for several weeks, and still suffers them from time to time as a result of the incident.

30. Plaintiff also suffers from back spasms from time to time as a result of the incident.

31. The plaintiff suffered physical injuries and emotional injuries as a result of the incident.

General Allegations

32. Plaintiff did not resist arrest at any time during the above-described incidents.

33. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

34. The individual defendants did not observe plaintiff violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

35. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of their rights.

36. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

37. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

38. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

39. Defendants unlawfully searched and seized plaintiff without a warrant, cause, consent, and/or beyond the scope of any warrant.

40. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)**

41. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

42. Defendants unlawfully searched and seized plaintiff without a warrant, cause, consent, and/or beyond the scope of any warrant.

43. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under New York State law.

THIRD CLAIM**(FALSE ARREST UNDER FEDERAL LAW)**

44. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

45. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

46. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FOURTH CLAIM**(FALSE ARREST UNDER STATE LAW)**

47. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

48. Defendants falsely arrested plaintiff without consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

49. Accordingly, defendants are liable to plaintiff for false arrest under New York State law.

FIFTH CLAIM

(UNREASONABLE FORCE)

50. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

51. The individual defendants' use of force upon plaintiff was objectively unreasonable.

52. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff.

53. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

54. Accordingly, the defendants are liable to plaintiff for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SIXTH CLAIM

(ASSAULT)

55. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

56. Among other things as described above, individual defendants' battery, false arrest, and unreasonable use of force against plaintiff placed them in fear of imminent harmful and offensive physical contacts.

57. Accordingly, defendants are liable to plaintiff under New York State law for assault.

SEVENTH CLAIM

(BATTERY)

58. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

59. Among other things as described above, the individual defendants' false arrest, and use of force against plaintiff were illegal physical contacts.

60. Accordingly, defendants are liable to plaintiff under New York State law for battery.

EIGHTH CLAIM

(FAILURE TO INTERVENE)

61. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

62. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

63. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

NINTH CLAIM

(CONSPIRACY)

64. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

65. Defendants are liable to plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiff under 42 U.S.C. § 1983.

TENTH CLAIM

(DENIAL OF A FAIR TRIAL)

66. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

67. The individual defendants are liable to plaintiff because they intentionally conspired to fabricate evidence against plaintiff, including omitting and/or manipulating evidence, and suppressing exculpatory evidence and forwarded that false evidence to police officers, prosecutors, and the court.

68. The individual defendants violated the law by either testifying falsely, providing false information, and/or drafting and signing false criminal court complaints and/or false police reports and forwarding them to police officers, prosecutors and the court.

69. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it is well established that individuals who knowingly use false evidence to obtain a conviction act unconstitutionally, depriving plaintiff of liberty without due process of law or a fair trial, and the harm occasioned by such unconscionable actions are redressable in an action for damages under 42 U.S.C. § 1983, the Fair Trial Clause of the Sixth Amendment to the United States Constitution, and the Due Process Clause of the Fourteenth Amendment to the United States Constitution.

ELEVENTH CLAIM

(MALICIOUS PROSECUTION FEDERAL LAW)

70. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

71. The individual defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiff by knowingly, intentionally, and maliciously providing false statements in complaints and police reports to police officers, prosecutors and/or the court(s), which alleged plaintiff had committed various crimes.

72. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

73. The individual defendants initiated the above-stated malicious prosecution in retaliation and to cover up their illegal and unconstitutional conduct.

74. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

TWELFTH CLAIM

(MONELL CLAIM)

75. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

76. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

77. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) arresting innocent persons in order to meet productivity goals; (2) using unreasonable force on individuals; and (3) fabricating evidence against innocent persons.

78. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

79. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

80. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

81. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

82. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

83. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

THIRTEENTH CLAIM**(RESPONDEAT SUPERIOR)**

84. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

85. The individual defendants were acting within the scope of their employment when they committed the above-described acts against plaintiff, including falsely arresting, assaulting, and battering plaintiff.

86. The City of New York is therefore vicariously liable to plaintiff under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
November 10, 2020

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 1800
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com

By:


MICHAEL O. HUESTON, ESQ.

VERIFICATION

I, RICARDO MALIN, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.

Richardo Malin
RICARDO MALIN

STATE OF NEW YORK)

: SS:

COUNTY OF KINGS)

On the 10th day of November, 2020, before me personally came and appeared RICARDO MALIN to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.

[Signature]
NOTARY PUBLIC

MICHAEL O HUESTON
Notary Public, State of New York
No. 02HU6073603
Qualified in Kings County
Commission Expires April 22, 2022

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

RICHARDO MALIN,

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-against-

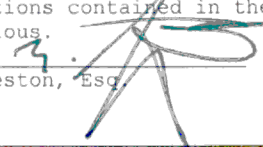
CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND COMPLAINT

MICHAEL HUESTON, ESQ.
Attorney for Plaintiff
16 Court St., Suite 1800
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 11/10/2020 Signature: 

Michael O. Hueston, Esq.

*Due and timely, service is hereby
admitted.*

Brooklyn, New York....., 2020

....., Esq.

Attorney for.....